

ABG BLACKDATA STATEMENT OF WORK

About this Statement of Work

Seller:

The **Anderson Brooks Group Company** that accepted this SOW.

Purchaser:

Great Computing Solutions, Inc. entity that accepted this SOW.

This Statement of Work (SOW) Contract is fictitious. The company names, addresses, locations, people names, email addresses, phone numbers, product names, dates and prices are not real. This contract was created as an example SOW Contract for testing and development purposes ONLY and bears no legal basis whatsoever.

Customer receiving ABG services (if different from Purchaser)

XYZ Company, LLC.

Prepared by: Vincent Vega

Issue date: May 23rd, 2024

Unless signed by both parties, this SOW and the prices herein will expire 30 days from the date of issue.

This ABG BlacData Statement of Work ("SOW") is governed by the following terms in descending order of precedence:

1. Tier One Partner purchase order (if applicable), excluding any Tier One Partner preprinted terms
2. This SOW
3. ABG aaS Commercial Terms <https://www.abg.com/xxx1/doc/xxx2>
4. ABG aaS Terms for Partners <https://xxx1.ext.abg.com/doc/xxx2>
5. ABG Partner Agreement

Tier One Partner understands and agrees to provide to the Customer, either directly or through. "Tier Two Partner": American Combined Solutions Ltd. located at 456 West Ave. STE 108, NY, NY 11823:

- the delivery-related information in section 5 (Service Details) of this SOW
- the applicable service descriptions identified in this SOW including any Data Privacy and Security Agreement applicable to the Service referenced in the service description.
- ABG aaS Terms for Customers (<https://www.abg.com/xxx1/doc/xxx2>)

Non-Disclosure

The information (data) herein constitutes trade secrets and/or information that are commercial or financial and confidential. It is furnished in confidence with the understanding that it will not, without permission of the offeror, be used or disclosed for purposes other than those provided herein, unless otherwise required by law.

1. SOLUTION FOR XYZ Company, LLC

- In particular, the ABG aaS Solution provides Customer with BlackData Infrastructure-as-a-Service (IaaS) as 5 year consumption solution. ABG will provide ABG Managed Services up to and including the hypervisor as well as the Professional Services to set-up the ABG Managed Services environment at two (2) sites. The solution is made up of core infrastructure, Professional Services, and Managed Services. As further described herein, this BlackData IaaS includes installation, monitoring, management, optimization, reactive and proactive support.

2. ORDERING

2.1 Will Purchaser issue a purchase order?

- Yes

2.2 Order information

Purchase orders (if required) must reference the following information in order to be valid:

- **SOW ID:** OPE-0092674925
- **Description:** ABG BlackData
- **Estimated year 1 contract value:** \$279,003.12

2.3 Addresses

Invoice address

- Great Computing Solutions, Inc.
- ATTN: Account Payable
- PO Box 9999
- Denver CO 80166
- Mia Wallace
- 999-555-8267
- mwallace@great.com

Sold To address

- Great Computing Solutions, Inc.
- 123 Main St
- Denver, CO 80166
- Jules Winnfield
- 999-555-5322
- jules.smith@great.com

Reseller address

- American Combined Solutions
- 456 West Ave. STE 108
- NY, NY 11823
- Butch Coolidge
- 999-555-6007
- bcoolidge@acs.com

Customer address – if different

- XYZ Company, LLC
- 789 Smith St
- Newark, NJ 07957
- Fabienne Bee – Finance Director
- 999-555-9225
- fbee@xyzc.com
- AP@xyzc.com

3. DEFINITIONS AND ROUNDING

3.1 Definitions

Terms not defined herein are otherwise defined in the ABG aaS Terms for Customers and/or the ABG aaS Commercial Terms.

- **Billing Tiers:** A particular System or component of a System with unit pricing.
- **Early Termination Fees:** Defined in section 6.4.3.
- **Installed Capacity:** The total Units of Measure represented by installed Systems.
- **Requested Capacity:** Requested Capacity is the number of Units of Measure required over the term agreed to with the Customer. Requested Capacity may increase through the contract change management process documented in the Account Support Plan ("ASP").
- **Reserved Capacity:** The Commitment expressed as number of UOMs and a percentage of Requested Capacity.
- **Service(s):** The services, detailed in the Agreement, that ABG will perform for the Customer, including the provision of ABG intellectual property and Systems for Customer's access, if applicable.
- **System Term:** The Commitment term pertaining to a System.
- **Trigger Capacity:** The extent of Customer's usage triggering change order negotiations for adding more Buffer Capacity through the delivery and installation of new Systems.
- **Used CPU cores:** The number of central processing unit (CPU) cores that are actively utilized by running applications and processes on a server or computing system. It indicates the portion of available CPU resources in use.
- **Variable Capacity:** The amount of UOMs available for Pay per use usage in excess of the Reserved Capacity.
- **MRC:** Monthly recurring colocation charges as defined in section 4.3.3.
- **Written Usable GB/GiB/TB/TiB:** The amount of data that has been written to the disk drives in the array

3.2 Rounding

Numbers resulting from metering of Services, as well as making calculations required by the Agreement may be rounded.

4. SOLUTION-SPECIFIC COMMERCIAL TERMS

4.1 ABG BlackData Flex Solutions

4.1.1 Payment model

ABG BlackData Flex Solutions Services are subject to the Subscription with a Pay per use option payment model as set out in section 5.3 of the ABG aaS Commercial Terms, however, both Subscription and Pay per use fees will be invoiced in arrears.

4.1.2 System Term start date and Service availability date

The System Term starts and Service is available upon the earlier of

- The Customer using the Systems, or
- The Service availability date provided by ABG

Any Service that is billed separately from Systems will be subject to its own Service availability date provided by ABG.

4.1.3 Pricing

The Reserved Capacity fee is payable irrespective of actual usage. Consumption-based charges will be calculated by multiplying any metered usage of Variable Capacity (or Buffer Capacity if applicable) in excess of the Reserved Capacity by the applicable UOM price provided. The Reserved Capacity must be included in determining the applicable rate band in section 6.1. The UOM rate in the applicable rate band will apply to the

entire Reserved Capacity and the entire Variable Capacity usage (as well as the entire Buffer Capacity usage if applicable).

Any Service component or Service subject to fixed recurring or non-recurring charges together with the applicable recurring or non-recurring charges.

4.1.4 Metering

a. Storage

Storage (Written Raw GB/GiB/TB/TiB and Written Usable GB/GiB/TB/TiB) is considered used when data is sent from a server and written to the disk drives in the array as determined from the data collected by the metering tools. Data is collected daily, and usage is the average storage space in use over the month.

b. Compute

Physical cores usage (Used CPU Cores) is measured in utilization percentage. A physical core is considered used if its daily average utilization is greater than 3%, as collected by the metering tools. Daily usage is the total number of physical cores with usage greater than 3% in a day. The monthly average of the applicable daily usage will be taken.

4.1.5 Pricing in the case of metering issues

If daily usage data cannot be collected by the metering scripts for more than two calendar days (including delays in implementing the metering script), ABG will send the Customer an email indicating that daily usage data cannot be gathered. The Customer will immediately assist ABG in resolving the problem.

a. If this issue continues for up to 30 days and

- Usage data has already been collected, then Seller will use the usage data from the day immediately preceding the failure for that 30-day period.
- No usage data has been collected, then Seller will use the mid-point between the Installed Capacity and the Reserved Capacity for that 30-day period.

b. If the issue continues beyond 30 days, one of the following will apply until the daily usage data issue is resolved:

- If the cause is attributable to the Customer, the billable amount will be equal to the Installed Capacity.

If the cause is attributable to ABG, the billable amount will be equal to the Reserved Capacity. If the cause is due to unidentified or unforeseeable external factors (in other words, neither ABG nor Customer has directly contributed to the failure through action or inaction), the billable amount will be equal to the mid-point between the Installed Capacity and the Reserved Capacity.

4.1.6 Price Adjustments

Where prices are calculated upon the Customer's estimated average growth per year through the System Term, Seller and Purchaser will negotiate equitable changes to the prices and fees in good faith if:

- a. A material adverse change in Customer's financial or operating condition has occurred since the Agreement was signed,
- b. Customer does not meet the annual growth rate assumption as stated herein, or
- c. Any of the values in the ABG Managed Services pricing assumption table in this SOW are exceeded by 10% or more at any time during the applicable System Term.

4.2 ABG Managed Services

4.2.1 ABG BlackData Service Details

For additional information please refer to the ABG BlackData Flex Solution built for ABG Managed Services data sheet in Section 5.1.1 Service Descriptions.

- ABG will provide ongoing, end-to-end operations and support services as further described in this SOW for the environment described in Section 5. Systems and Services.

The Services to be performed by ABG are as follows:

- a. Service Design, Transition and Implementation Services
- b. IT Service Management Services
- c. Systems Operation and Administration Services
- d. Relationship Management Services
- e. Operational Security Services

Service design Transition & Implementation	IT Service Management	Infrastructure Management	Security, Risk & Compliance Management	
Installation	Event Management	Server Virtualization	Managed Security	
	Incident Management			
Joint Verification	Problem Management	Operating Systems	Software Asset Management	
	Change Management			
Design	Service Request Management	Storage	Managed IT Compliance	
	Release Management			
Implementation	Configuration Management	Network	Managed Hybrid Cloud Economics	
	Capacity Management			
SLO/SLA Operations & Closure	Availability Management	Applications	Managed Backup	Managed Disaster Recovery
Relationship Management				
Account Support Team	Governance & Escalation	Operational Support Plan	Service / System Reporting	
Operational Security				

ABG Responsibility



Out of scope



4.2.2 ABG Managed Services Details

4.2.3 Service Levels for Incident Management

Incident Management is measured via Response and Resolution times achieved. The table below presents the Service Level Objectives per priority. The Service Level required (or the SLA) is to have min 90% of the incidents managed within the required Service Level Objective.

Priority	Description	Target Response Time	Target Resolution Time
1	Critical	90% < 15 min	90% < 4 hours
2	High	90% < 1 hour	90% < 8 hours
3	Medium	90% < 4 hours	90% < 16 hours
4	Low	90% < 8 hours	90% < 24 hours

- Incident management target response and resolution times are subject to the definitions listed in Table 13 of the ABG Managed Services for BlackData Custom Services Statement of Work Data sheet.

4.2.4 Customer Responsibilities

- The customer will be responsible for backup operation.

4.2.5 Monitoring, Operating and Administration Tasks

4.2.6 Server Virtualization Management

This section describes the activities that will be performed against the virtualization operating system/software (hypervisor) and functionality that will be running as the host operating system on a single or clustered set of physical servers in the Supported Environment. Activities relating to guest Operating Systems running on virtual machines within the hypervisor are addressed within the Operating System and Server Management section.

Virtualization Services consist of the following activities.

Process Activities	Customer	ABG
Monitor health status and availability	I	A/R
Monitor VM Host server Capacity	I	A/R
Monitor VM Host load distribution per Hypervisor cluster	I	A/R
Check log files on critical events	I	A/R
Address critical Incidents within the scope of ABG's responsibilities	I	A/R
Report availability	I	A/R
Report available capacity	I	A/R
Report performance	I	A/R
Delete, Remove, Create, Suspend, Power on, Power off, Resume, Reset VMs	C	A/R
Configuring Permissions for Users	A/C	R
Reboot VM Guest	C	A/R
Perform Hypervisor configuration backup	I	A/R
Restore Hypervisor configuration from backup	C	A/R
Check for new Hypervisor patches	I	A/R
Check/Advise on new Hypervisor versions	I	A/R
Optimize VM Host load distribution per Hypervisor cluster	C	A/R
Expand physical server capacity (if BlackData)	C	A/R
Create or remove Hypervisor (cluster)	C	A/R
Deploy new or clone existing VM Guest	C	A/R
Change VM Guest flavor (size)	C	A/R
Create VM Guest snapshot	C	A/R
Migrate OS VM Guest P2V or V2P (ABG Managed Services will deliver with additional cost - as a project)	C	A/R
Configuration changes for Hypervisor	C	A/R
Advise on new Hypervisor patches	I	A/R
Implement new Hypervisor patches	C	A/R
Implement new Hypervisor versions (Minor version updates)	I	A/R
Implement new Hypervisor versions (For Major version, ABG will deliver with additional cost - As a project)	C	A/R

Legend: R = Responsible, A = Accountable, C = Consulted, I = Informed

4.2.7 Server Management

This section describes the activities that will be performed relating to Server Management services in the Supported Environment.

ABG XL Servers Services consist of the following activities.

Process Activities	Customer	ABG
Monitor health status and availability	I	A/R
Health status monitoring of Power supply/fans/Over Temperature	I	A/R
Health status monitoring of CPU/MEM/Disk drive failures	I	A/R
Backup of system configuration	I	A/R
Check log files on critical events	I	A/R
Scheduled tasks (Power down/up the server)	C	A/R
Add, remove, change ILO/OneView user accounts	C	A/R
Active Health System data collection	I	A/R
iLO IP address change	C	A/R
Check for new firmware revisions	I	A/R
Incident management and coordination with Break fix support teams	C	A/R
Configure UEFI system settings	I	A/R
Configure ABG Disc Array controller configuration using ABG SSA	I	A/R
Advise on new firmware revisions	I	A/R
Implement new firmware revisions	C	A/R

Legend: R = Responsible, A = Accountable, C = Consulted, I = Informed

4.2.8 Storage Management

This section describes the activities that will be performed relating to Storage Management services in the Supported Environment.

Storage Appliance Series Services consist of the following activities.

Process Activities	Customer	ABG
Monitor storage system health (hardware and storage system OS) and availability	I	A/R
Monitor storage volumes health	I	A/R
Monitor Capacity alerts	I	A/R
Monitor performance alerts	I	A/R
Manage alerts and system tasks	I	A/R
Check log files on critical events/incidents	I	A/R
Reboot/Shutdown controllers	C/I	A/R
Disable or Enable storage ports	C/I	A/R
User account management	C	A/R
Check/Advise for new firmware releases	I	A/R
Support log collection	I	A/R
Assigning storage to hosts	C	A/R
Respond to security events/incidents	C/I	A/R
Manage Storage configuration changes	C/I	A/R
Implement proactive firmware updates	C/I	A/R
Incident management and coordination with support teams	I	A/R
Address performance incidents within the scope of ABG's responsibilities	C	A/R

Legend: R = Responsible, A = Accountable, C = Consulted, I = Informed

4.2.9 Netwin Management

This section describes the activities that will be performed relating to Netwin Management services in the Supported Environment.

Netwin (Switch, Router and Firewall) Services consist of the following activities.

Process Activities	Customer	ABG
Monitor health status and availability	I	A/R
Monitor physical network port utilization	I	A/R
Monitor network bandwidth utilization	I	A/R
Monitor WAN and internet bandwidth utilization	I	A/R
Monitor device resource (processor) utilization	I	A/R
Check log files on critical events	I	A/R
Address critical Incidents within the scope of ABG's responsibilities	I	A/R
Report availability	I	A/R
Report bandwidth utilization	C	A/R
Perform device configuration backup	C	A/R
Restore device configuration from backup	C	A/R
Creation of network device user accounts	A	R
Manage and update all Network environment documentation	C	A/R
Add, remove, change VLAN	C	A/R
Configuration changes of networking devices	C	A/R
Add / Modify / Delete routing changes	C	A/R
Reconfigure network device configuration to add additional functionality	C	A/R

Legend: R = Responsible, A = Accountable, C = Consulted, I = Informed

4.2.10 AllStore

This section describes the activities that will be performed against the AllStore Systems.

AllStore Services consist of the following activities.

Process Activities	Customer	ABG
Monitor health status and availability	I	A/R
Monitor system performance (CPU and memory)	I	A/R
Monitor AllStore capacity	I	A/R
Monitor Service Set Status	I	A/R
Monitoring of WARNING and CRITICAL Appliance alerts	I	A/R
Check log files on critical events	I	A/R
Add, remove, change user accounts	A	R
License Add	C	A/R
Capture Support ticket	I	A/R
Shutdown or reboot the appliance	C	A/R
Check Housekeeping statistics	I	A/R
Schedule housekeeping Blackout windows	I	A/R
Check Replication status (if applicable)	C	A/R
Perform AllStore configuration backup	I	A/R
Provide Appliance status report	I	A/R
Provide Capacity Report	I	A/R
Address critical Incidents within the scope of ABG's responsibilities	I	A/R
Creation of VTL/NAS/Catalyst Store	C	A/R
AllStore Network configuration	C	A/R
Failover / failback service sets (if multi node)	C	A/R
Implement new firmware releases	I	A/R
Add or modify libraries/shares/AllStore catalyst stores	C	A/R
Restore AllStore configuration from backup	C	A/R

Legend: R = Responsible, A = Accountable, C = Consulted, I = Informed

4.3 ABG Professional Services

4.3.1 Professional Services

4.3.1.1 ABG Managed Services Enablement

Key Activities:

- Prepare and plan for the implementation of BlackData solution.
- Create and deploy up to eight (8) VMs needed for BlackData metering, Managed Services monitoring and management tools.
- Capture and document “as built” information of the BlackData infrastructure.
- Provide knowledge transfer to ABG Managed Services team.

ABG will provide the deliverable(s) below as part of this Service Activity.

Deliverable Description:

Provide the following:

- As build documentation template.

4.3.1.2 Project Management

ABG will designate a resource to act as a project manager (“Project Manager”) to oversee the project, manage ABG resources, and be the Customer’s primary contact with ABG regarding the following:

- Management of scope (formal requests for changes).
- Create project schedule.
- Conduct status meetings.
- Prepare status reports.
- Project tools.
- Other activities as specified in this Statement of Work.

Key Activities:

Professional Services Status Reports

ABG’s standard form project status reports will be prepared by the ABG Project Manager for review and discussion at the status meeting. These reports may contain the following:

- Project Status Summary.
- Schedule status against the plan.
- Review of risks, issues, and actions to be taken by ABG and/or the Customer.
- Significant decisions from prior status meeting.

Professional Services Status Meetings

Project status meetings will be held in accordance with the frequency agreed in the Project Plan. Customer’s Project Manager and ABG Project Manager will represent their organizations at these meetings. Status meetings will include:

- Review of progress against schedule.
- Review open Change Requests.
- Review risks, issues, and actions to be taken.
- Review achievement against milestones.

Professional Services Project Schedule

The ABG Project Manager will create a project schedule that identifies the estimated timelines to provide the Services defined in this SOW.

The parties will mutually agree upon the project schedule as part of the Project Plan.

4.3.1.3 Limitations, Dependencies, and Assumptions

- Services will be performed at the Customer locations identified in this SOW, and/or ABG locations in accordance with the agreed on-site, off-site schedule, between the hours of 8:00 a.m. and 5:00 p.m. local time Monday through Friday, excluding ABG holidays ("Standard Work Day"). Weekend and holiday hours or hours outside the Standard Work Day may be available at an additional charge, and are subject to the change management process.
- Any required software, licenses and tools not provided in the BlackData Solution will be provided by the Customer.
- The solution will utilize the Customer's existing network infrastructure. Thus deployment/Configuration or documentation of any datacenter networking related components will be out of scope of this engagement.
- Services will be delivered remotely; Customer will provide remote access and all information necessary for ABG to deliver timely and professional remote delivery.
- The implementation services are limited to two sites.

5. SYSTEMS AND SERVICES

5.1 System 1

5.1.1 Service Descriptions

- **ABG BlackData Flex Solutions**, included services level:
<https://www.abg.com/xxx1/doc/xxx5>
 - **ABG BlackData Standard services experience**
<https://www.abg.com/xxx1/doc/xxx6>
- **ABG BlackData Flex Solution built for ABG Managed Services**
<https://www.abg.com/xxx1/doc/xxx7>
- **ABG Tech Support**
Tech Support Essential Services with DMR
15-minute response 24x7 for severity 1 incidents
24x7 4-hour on-site attendance
<https://www.abg.com/xxx1/doc/xxx8.pdf?ver=1>
- **ABG Installation Service**
<https://www.abg.com/us/en/collaterals/xxx9.html>
- **SaaS attached to ABG Storage Appliance**
<https://www.abg.com/xxx1/doc/xxx10?ver=1>
- **ABG Storage Appliance dHCI Startup Services**
<https://www.abg.com/us/en/collaterals/xxx11.html>
- **ABG Additional Time for Storage or Service Installation and Startup Service**
<https://www.abg.com/us/en/collaterals/xxx12.html>

5.1.2 Delivery details

Customer name	XYZ Company, LLC
Delivery site one name	Site1
Delivery address	99 Lee St, Miami, FL 33178
Customer contact name	Lance Lombardo / Marvin Washington
Customer contact phone	999-555-3892
Customer contact email	Helpdesk@xyzc.com
Delivery site two name	Site2
Delivery address	158 Broadway St, Las Vegas, NV 89149
Customer contact name	Winston Wolf / Remote Hands Manager
Customer contact phone	999-555-8223
Customer contact email	someone@site2.com
Estimated service delivery start date	Twenty (20 business days after ABG receipt of an email acceptance of this SOW and a valid purchase order from Great Computing Solution, Inc.
Term for this System	60 months; non-coterminous

5.1.3 Technical configuration/Bill of Materials (BOM)

Note: A list of assets will be provided in the account support plan.

5.1.4 Systems details

Compute units per physical server or compute module	5,222 CU XL999
Storage capacity	58,266 GB Storage 50,400 GB AllStore

5.1.5 Systems capacity

System Components/ Configuration	Billing Tier	UOM	Requested/ Installed capacity	Reserved Capacity (% of Requested Capacity and absolute value)	Variable Capacity (% of Requested Capacity and absolute value)
Compute	dHCI XL999 CU	CU	5,222 CU and 100%	4,177.60 CU and 80%	1,044.40 CU and 20%
Storage	dHCI Storage GB	GB	58,266 GB and 100%	34,959.60 GB and 60%	23,306.40 GB and 40%
Storage	AllStore GB	GB	50,400 GB and 100%	30,240 GB and 60%	20,160 GB and 40%

6. PRICING

6.1 Systems pricing

Additional Systems can be added through a mutually agreed change order.

6.2 Pricing assumptions

6.2.1 Annual growth rate assumption

6.2.2 ABG Managed Services pricing assumption

The tables below show the pricing assumptions used to price the ABG Managed Services.

Description	Year 1	Year 2	Year 3	Year 4	Year 5
Incident volume per month *	13	14	16	18	20
Service requests received per month *	13	14	16	18	20
Change request received per month *	2	3	3	4	4
User licenses granted for access to ITSM integration tooling	2	2	2	2	2

In the event any of the values in the tables below marked with * exceed 10% at any time during the term of the SOW, ABG reserves the right to reprice these Services.

6.3 Charges

6.3.1 Pricing Mechanism and the Monthly Price

The basic pricing factor is the Subscription fee for the Commitment and any Pay per use fee for Consumption in excess of the Commitment.

The Subscription fee for the Commitment is also called the Reserved Capacity fee. The Pay per use fee for Consumption in excess of the Commitment is also called the Variable Capacity fee and/or the Buffer Capacity fee if a Buffer Capacity is included instead.

For ABG BlackData Flex Solutions Monthly price (“**Monthly Price**”) is calculated by adding together the following:

- The applicable Subscription fee for each Billing Tier
- Any usage above the Commitment multiplied by the applicable UOM price for each Billing Tier (Pay per use fee)
- Any other applicable fixed monthly charges any other applicable fees or charges included in section 6

6.3.2 Delay fee

If System installation services are delayed for a cause not attributable to ABG on the 31st day from delivery of the System, ABG will start invoicing Customer a delay fee monthly in arrears. The delay fee is calculated as follows: 1/30th of monthly Commitment (Reserved Capacity if applicable) of impacted billing Tiers or Subscription charged daily as defined. Example: If Commitment (Reserved Capacity if applicable) or Subscription is \$30,000/month then the delay fee would be \$1,000 a day. A 25-day delay would equal a fee of \$25,000.

6.3.3 Early Termination Fees

- Termination for convenience by Purchaser, termination by Seller for Purchaser uncured breach or insolvency
 - In the event of such termination of the Agreement or any System before the expiration of the initial System Term, including termination before the start of the System Term, the Purchaser must pay Early Termination Fees, calculated as follows:
 - For each impacted System: The Commitment at the time of the termination x applicable UOM price for each Billing Tier in the System per month x the number of months remaining in the affected System Term
 - For fixed monthly charges: The sum of any monthly fixed charges x the number of months remaining in the affected System Term
 - For optional software or Services: any Early Termination Fees.
- Purchaser will finally settle all liabilities arising out of any termination in accordance with this section upon payment in full of Seller’s final invoice, which will include:

- Early Termination Fees (unless contained in a separate debit note if applicable)
- Any outstanding Subscription (Reserved Capacity) fees and Pay per use (Variable/Buffer Capacity) fees and Service charges
- Return Fee as set out in the first paragraph of section 4.1.4 of the aaS Commercial Terms.
- Termination by Purchaser for ABG uncured material breach or insolvency
 - In the event of termination by Purchaser for an uncured ABG material breach or ABG insolvency event, Purchaser will be relieved of the Early Termination Fees and the Return Fee.

6.3.4 Invoice Breakdown

Seller will invoice Purchaser monthly in arrears for

- The Monthly Price
- Any applicable additional charges (Early Termination Fees (unless contained in a debit note if applicable), Return Fee etc.)
- Any applicable taxes (such as, sales, value-added tax [VAT], goods and services tax [GST] or similar taxes or fees including stamp duty)

If this Agreement contains multiple Systems the charges set forth in this section 6.4 may be calculated and invoiced separately for each System.

7. ORDER ACCEPTANCE

The receipt by ABG of an email acknowledgement and a new purchase order with sufficient funds to cover estimated year one (1) value from Great Computing Solutions, Inc. referencing this Agreement is to be considered a valid order for Services.